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California Assembly toxics panel advances landmark ban on chemicals in processed food

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The California Assembly's Committee on Environmental Safety and Toxic Materials Tuesday approved a first-in-the-nation bill to ban five harmful chemicals from candy, cereals, and other processed food. That approval followed the Assembly's Health Committee's "do pass" recommendation earlier this month.

The bill, AB 418, sponsored by Assemblymember Jesse Gabriel, would end the use of brominated vegetable oil, potassium bromate, propylparaben, Red Dye No. 3 and titanium dioxide in popular food products sold in the state. Any food manufactured elsewhere but placed for sale in California will have to comply with the regulation.

The chemicals have been linked to serious health problems, such as a higher risk of cancer, nervous system damage, and hyperactivity.

European regulators have already banned all five substances from use in food, with the narrow exception of Red No. 3 in candied cherries. Given the size of California's economy, A.B. 418 would set an important precedent for improving the safety of many processed foods.

Following Europe's lead and protecting U.S. consumers is seen by supporters as the right step, while opponents of the bill that claim it would end the sale of some candy and other popular items in the state.

"There is no realistic chance that this bill will result in Skittles or any other product being pulled off the shelf," said Gabriel, who chairs the Assembly Committee on Privacy and Consumer Protection. "The idea here is for these companies to make minor modifications to their recipes so that these products no longer include dangerous and toxic chemicals."

"Skittles and many other brands have already made changes to their recipes in the European Union, the United Kingdom, and other nations where these chemicals are banned," he continued. "While the chemical companies might want you to believe we're going too far with this bill, we are in fact many steps behind the rest of the world. We simply want our kids to have the same protection."

The Environmental Working Group and Consumer Reports support A.B. 418. The California Assembly's Appropriations Committee will next consider the bill.

EWG and CR say there are more than 10,000 chemicals allowed for use in food sold in the U.S. Nearly 99 percent of those introduced since 2000 were approved by the food and chemical industry, not the Food and Drug Administration, the agency tasked with ensuring our food supply is safe.

"Despite the serious and well-documented risks posed to our health by these five food chemicals, the FDA has failed to take action to protect the public," said Brian Ronholm, director of food policy at Consumer Reports.

"At a time when the FDA's weak oversight has prevented it from taking action, it is critical for states like California to ensure consumers are protected from these toxic food chemicals," Ronholm continued. "By removing these harmful chemicals from candies, cookies, and other processed food, this bill will protect Californians and encourage manufacturers to make their products safer for the rest of the country."

Most of the chemicals added to food and food packaging to enhance flavor or appearance, or to preserve freshness, are likely safe to eat. But supporters say the five food chemicals covered by A.B. 418 have been linked to a number of serious health concerns. They were banned by the EU after it launched a comprehensive re-evaluation of the

safety of all food additives in 2008.

"What are these toxic chemicals doing in our food?" asks Susan Little, EWG's senior advocate for California government affairs.

"We know they are harmful and that children are likely being exposed at a much higher rate than adults. It makes no sense that the same products food manufacturers sell in California are sold in the EU but without these toxic chemicals," Little said.

"Our kids need to be protected, too," she added. "These harmful additives have no place in California's food supply."

Children have lower tolerance levels than adults to chemical exposure, and their developing bodies make them especially vulnerable.

Consumers consistently rank food chemical concerns ahead of other food safety issues. But additives are not adequately regulated by the FDA, due in large part to the lack of financial support from Congress for food chemical review.

"For decades, the FDA has failed to keep us safe from toxic food chemicals," said Scott Faber, EWG senior vice president for government affairs. "The chemical companies keep exploiting a loophole that allows for food additives that have not been adequately reviewed for safety by the FDA. And the FDA consistently fails to reassess chemicals, even in light of new science. The food and confectioners industries know the review process at the FDA is broken."

"In the absence of federal leadership, it's up to states like California to keep us safe from dangerous chemicals in candy, cookies, and other foods our families enjoy," said Faber.

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